TSITSI SARAH GWATIDZO
versus
HOMELUX LAND DEVELOPERS (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE: 20 January and 25 February 2026

Court Application

L. Hlongo, for the applicant
T. L. Mapuranga, for the respondent

DEMBURE J: This is a court application seeking the substitution of one party for another. The application was made in terms of the common law. Alternatively, the applicant made a composite application for condonation for the late filing of the application for correction of a court order and an application for correction or variation of the court order granted in Case No. HCH 2484/23. The application for correction or variation of a court order was made in terms of r 29(1) of the High Court Rules, 2021 (*"the Rules"*). The draft order sought the correction of the erroneous citation of the respondent as "Homelux Property Investments". The relief sought is stated as follows:

> "1. The application to amend the citation by substituting Homelux Land Developers (Pvt) Limited for the Respondent in HCH2484/23 be and is hereby granted.
> 2. Subsequently, the court order in HCH2484/23 is hereby amended by substitution of "Homelux Land Developers (Private) Limited" for "Homelux Property Investments."
> 3. Costs of suit.
> Alternatively
> 1. The application for condonation for late filing of an application for correction or variation be and is hereby granted.
> 2. The application for variation or correction of the court order in HCH 2484/23 be and is hereby granted.
> 3. The Court order in HCH2484/23 is hereby corrected, by deletion of "Homelux Property Investments" and Substitution thereof with "Homelux Land Developers (Private) Limited."
> 4. Costs of suit."

FACTUAL BACKGROUND

On 13 April 2023, the applicant filed a chamber application for leave to file a class action in terms of s 3 of the Class Actions Act [*Chapter 8:17*] as read with r 60 of the Rules in Case No. HCH 2484/23. The respondent in those proceedings was cited as "Homelux Property Development". She alleged that she did not have full and further details of the respondent. The respondent did not object that the party cited was a non-existent entity. Instead, in para 2 of its opposing affidavit, it was stated that "the respondent's correct citation should reflect Homelux Land Developers (Pvt) Ltd instead of Homelux Property Development as it is the owner of the land."

On 5 June 2023, the applicant filed a notice of amendment. In that notice, the applicant sought to amend the name and citation of the respondent in the proceedings by the deletion of "Homelux Property Development" and its substitution thereof with the name "Homelux Land Developers (Pvt) Ltd", the present respondent. On the same day, the applicant filed an answering affidavit in which it was also pleaded that the respondent's correct name should be cited as stated in the opposing affidavit, and that a notice of amendment thereof had been lodged. There was no objection lodged to challenge the amendment sought. The parties subsequently filed their heads of argument, and the applicant requested a set down of the matter for hearing and determination.

It was not in dispute that the chamber application was referred to the Honourable Mr Justice ZHOU J, who dealt with the application on the papers. Thus, on 27 March 2024, the court granted the applicant to institute a class action against the respondent for and on behalf of the members of Golf Club Housing Scheme and other ancillary relief. The respondent in that order was stated as "Homelux Property Investments". It is common cause that the name was never at anytime in those proceedings cited as that of the respondent, even when the application was filed. That this was a patent error was not in dispute before me.

On 28 March 2024, the Registrar formally advised the parties of the availability of the said order. The applicant's legal practitioners wrote a letter on 16 April 2024 to the judge's clerk and requested that the letter be placed before the judge for the correction of the order to read "Homelux Land Developers (Pvt) Ltd" as had been sought in the amendment filed of record. Letters following up on the request for the correction of the order were further filed on 2 and 11 July 2024 by the applicant's legal practitioners. On 12 July 2024, there was a letter uploaded on the IECMS from the Registrar containing the substantive response from ZHOU J, who had

commented that the applicant had to proceed in terms of the Rules to correct the citation of the respondent.

The applicant pleaded that her legal practitioners missed that communication and went on to make another follow-up on their request for correction of the order on 20 January 2025. She stated that her legal practitioner only saw the response from the Registrar of 11 July 2024, which stated that her request was still pending before the judge. A supporting affidavit from the applicant's legal practitioner, Ms *Hlongo*, was filed to explain what transpired. She stated that she only realised that there was a response to their request from the judge dated 12 July 2024 on 3 July 2025 after a follow-up from the applicant. She accepted that she had made a mistake by downloading the letter dated 11 July 2024 instead of the one with the comments from the judge of 12 July 2024.

On 8 July 2025, the present application was filed. The applicant averred that the respondent was the correct party, which was a necessary and proper party against whom a spoliation order would be sought. Thus, the respondent in Case No. HCH 2484/23 had to be amended and substituted with "Homelux Land Developers (Pvt) Ltd". It was argued that there would be no prejudice to the other party if that party had to be substituted for "Homelux Property Investments".

With regard to the alternative claim, the applicant averred that the order sought to be corrected contains a patent error as it was granted against a party that was never cited and that was erroneous. The applicant had sought an amendment, which was also not considered. Since the application was now being made outside the period prescribed under r 29(2), the applicant sought condonation for the late filing of the application for correction of the order. She contended that she had met the requirements of an application for condonation, namely, that the delay was not inordinate, there was a reasonable explanation for the delay and that the application had prospects of success. She contended that it would be in the interests of justice that the matter be heard on the merits

The application was opposed by the respondent. It was contended for the respondent that there was no basis for granting the order either in the main or in the alternative. The applicant sought to amend the order and substitute a party after the fact. They further asserted that "Homelux Property Development" and "Homelux Land Developers (Pvt) Ltd" are distinct legal

entities, with the former operating as a property developer while the latter is engaged in the servicing of land and construction of civil engineering works. The substitution sought would undermine the integrity of legal proceedings, as one cannot cite a wrong party and later seek to substitute that after judgment with another party.

The respondent accepted that the order indeed contains a patent error by incorrectly naming the respondent as "Homelux Property Investments" but argued that the application went beyond the correction of a clerical mistake. Instead, the relief sought is to substitute the respondent with a party which was never cited in the original proceedings. It was contended that the requirements for condonation had not been met, and the application, both in the main and the alternative, must be dismissed with costs.

In the applicant's answering affidavit, a point *in limine* was raised that there was no valid opposing affidavit on the ground that there was no board resolution authorising the deponent to represent the respondent and that the opposing affidavit did not relate to the present application. It was argued that there was no opposition due to the deponent's lack of authority.

At the hearing, the preliminary point was argued but later abandoned after Mr Mapuranga had advised the court of the filing of the board resolution authorising the deponent Justin Machibaya to act on behalf of the respondent. He had submitted that by the authority of *Dahaw (Pvt) Ltd & Anor v Willdale Ltd & Ors* HH 235/22, when the deponent's authority is challenged, a board resolution can be produced at any stage of the proceedings and may even be tendered over the bar. After the filing of the board resolution, Ms *Hlongo* decided to abandon the point *in limine*. The parties proceeded to make submissions on the merits.

SUBMISSIONS ON THE MERITS

Ms *Hlongo* submitted that she would abide by the papers filed of record. She emphasised that the present application was a three-in-one application. Firstly, the applicant seeks an order for the substitution of a party. In particular, the substitution of the respondent in case number HCH 2484/23 with "Homelux Land Developers (Pvt) Ltd". It was contended that the application was based on the common law. The case of *Gariya Safaris (Pvt) Ltd v Van Wyk* 1996 (2) ZLR 246 (HC) was cited as the authority thereof.

Counsel went on to argue that what was required in the application of this nature was that the applicant must show that the party sought to substitute the party in previous proceedings was

the correct one to be cited and that no prejudice would be suffered by the respondent, which prejudice cannot be compensated by an order for costs. It was submitted that Homelux Land Developers (Pvt) Ltd was the correct party, which was necessary and proper in the proceedings. The respondent, in their notice of opposition, provided the correct citation or the correct name of the respondent as Homelux Land Developers (Pvt) Ltd. The applicant sought an amendment to correct the name. The order cites Homelux Property Investments, a party which had never been cited in the proceedings. Homelux Land Developers (Pvt) Ltd should be cited as the respondent in that matter.

It was submitted that the respondent would suffer no prejudice as it was the one which supplied the correct name of the respondent in its notice of opposition. She argued that in *Deputy Sheriff Karoi* v *Edward Chigango & Ors* HH 310/14, a substitution was allowed after the order had already been granted and there was no prejudice to the other party. She contended that there was no difference between Homelux Land Developers (Private) Limited and Homelux Property Development, as it is one entity that they had wrongly cited. The applicant accordingly sought substitution of a party in terms of the common law.

Counsel further submitted that alternatively, the applicant sought an order for the correction or variation of a judgment in terms of r 29 of the Rules. She contended that the order was granted in the absence of parties in the sense that the parties were not called to appear in the matter, which was determined based on papers. The court order contains a patent error. The patent error is that the order was granted against one Homelux Properties Investments, a party that was never cited by the parties throughout the proceedings. That should justify the correction or variation of the order, given the amendment that had been sought by the applicant. That amendment was not considered when the application was granted. If the amendment had been considered, the court would have made an order against one Homelux Land Developers (Pvt) Ltd instead of Homelux Property Investments.

It was further submitted that the application for correction of the order was made out of time since the rules require the application to be made within one month after knowledge of the order. This necessitated the application for condonation for the late filing of the application for correction. The requirements for the condonation application had been satisfied. The applicant must satisfy the court that there was a reasonable explanation for the delay and that the

application for correction has prospects of success. In this case, the explanation by the applicant was that the applicant failed to make an application for correction earlier on because, firstly, she tried to seek the involvement of the judge through a letter. They made several follow-ups with letters filed of record.

Counsel also submitted that a supporting affidavit was filed to explain the delay. The applicant was not sitting on her laurels, and therefore, the non-compliance was not flagrant.

She further submitted that the application for correction or variation of the order has high prospects of success. This was so as the application was based on a patent error, and the error was on the part of the presiding judge, who, more particularly, gave an order against a party that had never been part of the proceedings. The order was granted in error, as the court did not consider the notice of amendment and that the respondent was the one who supplied the correct citation of the respondent. Counsel prayed for an order in terms of the draft order.

Per contra, Mr *Mapuranga* submitted that the present application must fail for the simple reason that the respondent had pointed out that Homelux Land Developers (Pvt) Ltd and Homelux Property Development are two different entities. The authorities cited by counsel for the applicant do not allow substitution. There can never be anything called the substitution of parties. They can be joined. There can be removal of a party, but there cannot be substitution of one party who is distinct and independent for another party. The only substitution permissible in terms of the rules is a substitution under r 32(9). It is the substitution of, for example, a deceased person with their executor or a company in liquidation with the liquidator.

Counsel further contended that the case of *Deputy Sheriff, Karoi,* does not say what counsel said. In this case, the applicant is not correcting the name. She is substituting distinct parties. On the condonation together with the correction, he argued that the applications must fail because Homelux Property Development was not cited. It is the party that litigated earlier before ZHOU J. It is the interested party on the question of the correction of the order in which it participated. It was further argued that the delay in this matter was excessive. There was an inordinate delay, and for that reason, all applications must fail on that score. He argued that if the applicant was seeking just substitution to change the "Investments" with the "Development", having cited the Homelux Property Development, they probably could succeed.

In reply, Ms *Hlongo* submitted that there was no proof that had been attached to show that Homelux Property Development and Homelux Land Developers (Pvt) Ltd are two separate entities. She maintained that, in light of the *Deputy Sheriff, Karoi* case, it was possible for one to substitute a party for another. In that case, the application was granted to substitute Noxon Investments (Pvt) Ltd for one David Govere. It was very possible for a substitution to be done under common law without resorting to r 32 of the Rules.

THE MAIN APPLICATION FOR SUBSTITUTION

ISSUE FOR DETERMINATION

WHETHER THE APPLICATION SATISFY THE REQUIREMENTS FOR SUBSTITUTION

It is settled law that the general rule is that the court may allow the substitution of one party for another by the amendment of summons or pleadings. The court does so to ensure that a necessary and proper party is before it so that it can effectually and completely determine the matter between the parties. The main consideration would be whether there would be prejudice to the other party, which cannot be remedied by an order for costs. In exceptional circumstances, the court may also amend a judgment by substituting a party, which involves the mere correction of the wrong name without changing the identity of the party to a judgment. This position was affirmed in *Gariya Safaris (Pvt) Ltd supra* at p 251 where MALABA J (as he then was) said:

> "…The question is, whether or not l have the power under the High Court Rules 1971, to order an amendment of a judgment to substitute a new person who does not consent to the substitution, as the judgment debtor? The general rule is that, a court should allow the substitution of one party for another by the amendment of summons, or pleadings. In exceptional circumstances may a court amend a judgment. In each case the test is whether there is prejudice to any of the parties which cannot be compensated by an order for costs. The court must also be satisfied that the new person is a necessary and proper party to be before it, so that it may effectually and completely determine the cause between the existing parties. In *Devonia Shipping Ltd v MVLids (Yeoman Shipping Co Ltd Intervening)* 1994 (2) SA 363 (C) ROSES-INNES J put the position succinctly at 369F-I saying:
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> "The general rule is that an amendment of a notice of motion, as in the case of a summons or pleading in an action, will always be allowed unless the application to amend is *mala fide* or unless the amendment would cause an injustice or prejudice to the other side which cannot be compensated by an order for costs or, in other words, unless the parties cannot be put back for the purposes of justice in the same position as they were when the notice of motion which it is sought to amend was filed. *Moolman* v *Estate Moolman & Anor* 1927 CPD 27 at 29. A material amendment such as the alteration or correction of the name of the applicant, or the substitution of a new applicant should in my view usually be granted subject to the considerations mentioned of

> prejudice to the respondent. Compare *Trustees Africa Explosives Pension Fund* v *New Hotel Properties (Pty) Ltd, Trustees African Explosive Pension Fund* v *Nestel* 1961 (3) SA 245 (W) at 247A-E. The risk of prejudice will usually be less in the case where the correct applicant has been incorrectly named and the amendment is sought to correct the misnomer than in the case where it is sought to substitute a different applicant. The criterion in both cases, however, is prejudice which cannot be remedied by an order as to costs and there is no difference in principle between the two cases.See also: *Goldberg* v *Tomaselli and Sons Ltd* 1940 TPD 408; *Gihwala* v *Gihwala* 1946 CPD 486; *Curtis-Setchell* v *Koeppen* 1948 (3) SA 1017 (W); *Que Bakery (Pvt) Ltd* v *Model Enterprise* 1973 (2) RLR 292 (G); *Greef* v *Janel & Anor* 1986 (1) SA 647 (T); *O'Sullivan* v *Heads Model Agency* 1995 (4) SA 253 (W); *Hip Hop Clothing Manufacturing CC* v *Wagener NO* 1996 (1) All SA 93 (C); 1996 (4) SA 222 (C). Rule 87 prescribes the procedure to be followed to effect a substitution of one party for another by amendment to the summons.
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> It is clear from the study of the decided cases that an application for an order of substitution should be made promptly. It is only in exceptional circumstances that the application will be entertained when it involves a material amendment to the judgment. It is likely to be adjudged too late if made after judgment (*Bullock* v *London General Omnibus Co* [1907] 1 KB 264; A-G v Gane [1907] 2 KB 487) unless it involves the mere correction of the wrong name without changing the identity of the party to a judgment (*Pearlman (Veneers) SA (Pty) Ltd* v *Bartels* [1954] 3 All ER 659 (CA)). There should still be something left to be done in the action after judgment, for example, where the damages are still to be calculated." (*my emphasis*)

What is clear from the above case and the authorities cited therein is that an application for substitution after judgment, which involves the mere correction of the wrong name without changing the identity of the party to a judgment, is legally permissible. It is only an application for substitution that seeks a material amendment to the judgment, which, if made after judgment, can be taken to have been made late. Given the above authorities, it is clear that Mr *Mapuranga*'s argument that the application was unheard of and incompetent was legally untenable. The argument was erroneous, given the settled law outlined in *Gariya Safaris* (*supra*).

Further, in *Deputy Sheriff, Karoi* (*supra*), the court also had an opportunity to consider the substitution of a party by mere correction of a wrong name after judgment when it was dealing with an interpleader application. At p 2 of the judgment, TSANGA J said:

> "An application to amend the citation of David Govere was made by the applicant. With regards to incorrectly cited parties, case law and legal authorities are clear that such amendments are permissible. As Herbstein and Van Winsen, [*The Civil Practice of the High Courts and the Supreme Court of Appeal of South Africa Volume 1 (Juta & Co, 2009) 5th edition at p 145]* explain at p145:
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> "Where a party has been cited incorrectly, the citation can be amended. It is important to distinguish between situations where the person cited is a non-entity and where an existing entity has been incorrectly cited. It is also important to distinguish the correction of citation of a party and the substitution of a new party. A court can allow the substitution of a party by way of an amendment provided that no prejudice results to the other parties to the proceedings".

> In *casu* I was not faced with the substitution of a new party altogether but the correction of an incorrectly cited party. I allowed the application to amend the citation of David Govere with that of Noxon Investments and proceeded to hear the matter to finality for the following reasons…" (*my emphasis*)

In this case, I must consider whether or not the application for substitution involves a material amendment to the judgment or the mere correction of the wrong name without changing the identity of the party to the judgment in Case No. HCH 2484/23. The applicant averred that the correct name of the respondent, Homelux Land Developers (Pvt) Ltd, was supplied by the respondent itself. In para 2 of its opposing affidavit, it was clearly stated that the correct citation should reflect Homelux Land Developers (Pvt) Ltd instead of Homelux Property Development, as it was the owner of the land. The respondent did not plead that these were separate legal entities. It also did not raise any objection that the applicant had cited a non-existent entity, but merely corrected the name of the respondent. The issue that it was a different party, therefore did not arise.

The applicant also further sought an amendment of the name of the respondent, incorrectly cited in those proceedings, by filing a notice of amendment. The respondent did not object to the said amendment to correct the name of the respondent in the proceedings. Given the amendment sought without any opposition from the respondent, it was clear that the court committed an error when it issued an order against a party that had not been cited in the proceedings, Homelux Property Investments and ignored the pleadings which showed that the correct name of the respondent was Homelux Land Developers (Pvt) Ltd. Since it was the same party before the court, though wrongly named, the application for substitution after judgment clearly is one for the mere correction of the wrong name without changing the identity of the party to a judgment. It was not a material amendment which could be considered late. Further, there is no prejudice to the respondent as it was the same party that responded to the application. It had already been heard. I am satisfied, therefore, that the applicant satisfied the requirements for an application of this nature. The application ought to be granted.

In any case, I would also grant the alternative relief correcting the order in terms of r 29(1)(b) of the Rules. However, since the application was filed late, I am satisfied that the application for condonation should be granted first. It was common cause that the application

could not be filed within a month after the applicant had the knowledge of the judgment on 28 March 2024 as required under r 29(2).

APPLICATION FOR CONDONATION

ISSUE FOR DETERMINATION

WHETHER OR NOT CONDONATION SHOULD BE GRANTED

It is trite that where a party has failed to comply with the court rules, he or she must seek condonation for the non-compliance with the rules first before seeking any other court relief. Thus, in *Sergeant Mhande 04737T & Anor* v *The Chairman of the Police Service Commission & Ors* SC 63/18 at p 3, BERE JA (as he then was) said:

> "It is the accepted position of the law that an applicant who has failed to comply with a given court order, or infringed the rules of the court, must seek to be condoned or pardoned for non-compliance first before applying for reinstatement of their case. In the case of *Zimslate Quartize (Pvt) Ltd & Others* v *Central African Building Society* SC 34/17 ZIYAMBI JA, when dealing with an almost similar matter remarked as follows: -
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> "An applicant who has infringed the rules of the court before which he appears, must apply for condonation and in that application explain the reasons for the infraction. He must take the court into his confidence and give an honest account of his default in order to enable the court to arrive at a decision as to whether to grant the indulgence sought. An applicant who takes the attitude that indulgence, including that of condonation, are there for the asking does himself a disservice as he takes the risk of having his application dismissed." (*my emphasis*)

Condonation is an indulgence the grant of which is within the discretion of the court. It is not granted on mere asking. The applicant must show sufficient and good cause for the indulgence. See Van Winsen & Herbstein, *The Civil Practice of the Supreme Court of South Africa*, 4th Ed at pp. 897-898, where it is stated as follows:

> "Condonation of the non-observance of the rules is by no means a mere formality. It is for the applicant to satisfy the court that there is sufficient cause to excuse him from compliance. The court's power to grant relief should not be exercised arbitrarily and upon the mere asking, but with proper judicial discretion and upon sufficient and satisfactory grounds being shown by the applicant. In the determination whether sufficient cause has been shown, the basic principle is that the court has a discretion, to be exercised judicially upon a consideration of all the facts, and in essence it is a matter of fairness to both sides in which the court will endeavour to reach a conclusion that will be in the best interests of justice. The factors usually weighed by the court in considering applications for condonation include the degree of non-compliance, the explanation for it, the importance of the case, the prospects of success, the respondent's interest in the finality of his judgment, the convenience of the court and the avoidance of unnecessary delay in the administration of justice."

The legal position was further affirmed in *Friendship* v *Cargo Carriers Ltd & Anor* SC 01/13, where it was held that:

> "Condonation is an indulgence which may be granted at the discretion of the court. It is not a right obtainable on demand. The applicant must satisfy the court/judge that there are compelling circumstances which would justify a finding in his favour. To that end, it is imperative that an applicant for condonation be candid and honest with the court. Certain criteria have been laid down for consideration by a court/judge in order to assist it in the exercise of its discretion. Among these are, the extent of the delay and the reasonableness of the explanation therefor, the prospects of success on appeal, the interest of the court in the finality of judgments and the prejudice to the party who is unable to execute his judgment. The list is not exhaustive."

See also *Doves Funeral Assurance (Private) Limited* v *Harare Motorway (Private) Limited and 4 Others* SC 63/23 at pp 6-7.

It is trite that the above factors must be considered cumulatively and in the context of the whole application. While the prospects of success is one of the factors, it is not necessarily decisive. The law is also clear that the lack of an acceptable explanation for the delay may be complemented by very good prospects of success.

EXTENT OF DELAY

In terms of r 29(2), the application ought to have been lodged within a month of the date the applicant became aware of the court order in question. It is common cause that the applicant became aware of the order on 28 March 2024. A calendar month thereafter lapsed on 28 April 2024. This application was only filed on 8 July 2025. The delay in filing the application was for about 14 months. Where an application was required to be filed within one month, and in circumstances where the applicant merely wrote some letters instead, clearly, in the circumstances, the delay was inordinate.

EXPLANATION FOR THE DELAY

The applicant explained that her legal practitioner wrote a letter to the judge on 16 April 2024 seeking correction of the court order. There is no explanation why, after becoming aware on 28 March 2024, the applicant's legal practitioner had to wait until 16 April to file the letter. Even after filing this letter, and where it was apparent that the appropriate approach to take was to apply for the correction, the applicant decided not to take that initiative. The applicant further alleged that follow-up letters were again filed on 2 and 11 July 2024. But after these letters, clearly no action was taken until another letter was filed on 20 January 2025. This long delay

was unexplained. It was not clear why the applicant would fail to take any further action for such a long period of about six (6) months. She, therefore, sat on her laurels, taking into account that the main action for spoliation is usually sought on an urgent basis. I am not satisfied that the applicant acted diligently as a serious litigant.

Even after that letter filed on 20 January 2025, nothing was done for about 5 months until the date it was alleged the legal practitioner had to act on 3 July 2025. Again, this long period was not explained at all. The explanation that the legal practitioner only noticed and downloaded the letter of 11 July 2024 from the Registrar and failed to notice the letter of 12 July 2024 was not plausible. I consider this to be a concocted mistake created to seek to justify the long inaction by the applicant. In any case, the court takes judicial notice that the applicant herself has an email linked to the IECMS. She did not explain why, if she was linked to the case failed to react to the letter of 12 July 2024 declining the request to correct the court order through a letter.

The provisions of r 29(1) are very clear that a party can only request a correction or variation of a court order, as the applicant sought to do, through a court application. The court may *mero motu* correct or vary a court order, but that is at the court's own initiative, not upon request by litigants, as they can only request formally by way of an application on notice to all affected parties. In these circumstances, I find the application for the delay to have been unreasonable or unacceptable.

PROSPECTS OF SUCCESS

The law is clear that the applicant must also show that she has prospects of success. In *casu*, the prospects of success relate to the application for correction of the court order. For that application to be considered to have prospects of success, it must be arguable or not one that is hopeless. There must be some rational basis for the court to make such a conclusion. What constitutes prospects of success was restated in *Mupindu & Ors* v *Mupindu & Anor* SC 115/25 at p 7 para 19, where UCHENA JA had this to say:

> "Prospects of success refer to the reasonable likelihood that an intended appeal, on being argued before the appellate court, may be decided in favour of the applicant. They are not measured by the certainty of victory but by the presence of arguable grounds which carry sufficient weight to persuade a judge that the outcome on appeal could justifiably be different. It is not enough that the case is arguable in the abstract, the issues must be of such merit as to carry a real fighting chance which can alter the judgment of the court *a quo*. The South African Supreme Court in *Smith* v *S* 2012 (1) SACR 567 (SCA) at para 17 commented that:

> "What the test of reasonable prospects of success postulates is a dispassionate decision, based on the facts on the law that a court of appeal could reasonably arrive at a conclusion different to that of the trial Court. In order to succeed, therefore, the appellant must convince this Court on proper grounds that he has prospects of success on appeal and that those prospects are not remote but have a realistic chance of succeeding. More is required to be established than that there is a mere possibility of success that the case is arguable on appeal or that the case cannot be categorized as hopeless. There must, in other words, be a sound, rational basis for the conclusion that there are prospects of success on appeal." (*my emphasis*)

In this case, it was not in dispute that the court order contained a patent error by referring to the respondent as Homelux Property Investments. There is no doubt that this was never cited as a party in the proceedings before the court. It was clearly a patent error committed by the court. Mr *Mapuranga* also conceded that the order by recording the respondent as such indeed had a patent error which had to be corrected. The parties only sharply differed on whether the correction could be done as envisaged in the application. The applicant clearly has an arguable case, as there is no doubt that the order contained a patent error. I find that this application has good prospects of success

While the delay was inordinate and the explanation for the delay unreasonable, given the circumstances where the order clearly has a patent error which is common cause and that the applicant has good prospects of success, it would not be in the interests of justice to close the door on the applicant. The order certainly contains a patent error, as accepted by the respondent. To that extent, it would be a miscarriage of justice not to consider the application for its correction. There is no doubt that the party cited as the respondent was never a party in the proceedings. Such an order cannot be allowed to remain that way. To do so would fundamentally render the whole proceedings in Case No. HCH 2484/23 a complete waste of both judicial and the parties' resources. The order of the court would also remain unenforceable. That cannot be countenanced.

In any case, I find that there is no prejudice to the respondent if this application is granted. The correction would clear the way for the intended class action. There would, therefore, be finality in that litigation. The applicant, on the other hand, would suffer prejudice as the order in its current form cannot be enforceable against the respondent. I am, therefore, of the view that, after having considered all the factors together and despite the delay being inordinate and the explanation thereof unacceptable, it would be in the interests of justice that the

condonation sought be granted. I accordingly grant the condonation sought. I will now proceed to deal with the substantive application for correction of the court order.

APPLICATION FOR CORRECTION OR VARIATION OF THE COURT ORDER

ISSUE FOR DETERMINATION

WHETHER THE COURT ORDER CONTAINS A PATENT ERROR AND IF SO, WHETHER IT CAN BE CORRECTED AS CLAIMED

The court is empowered in terms of r 29(1) of the Rules to correct its own orders or judgments upon an application by any affected party where the order or judgment contains a patent error. Thus, r 29(1) thereof states as follows:

> "29. Correction, variation and rescission of judgments and orders
> (1) The court or a judge may, in addition to any other powers it or he or she may have, on its own initiative or upon the application of any affected party, correct, rescind or vary—
> (a) an order or judgment erroneously sought or erroneously granted in the absence of any party affected thereby; or
> (b) an order or judgment in which there is an ambiguity or a patent error or omission, but only to the extent of such ambiguity, error or omission; or
> (c) an order or judgment granted as a result of a mistake common to the parties."

It was argued for the applicant that the order sought to be corrected contains a patent error, more particularly in that it granted an order against Homelux Property Investments, a party that was never cited by the parties throughout the proceedings. What constitutes a patent error possible of correction in terms of r 29(1) (b) has already been ventilated by the courts. In *Jongwe & Anor* v *National Foods Ltd* SC 91/25, para 35, UCHENA JA held as follows:

> [35] What constitutes a patent error for purposes of r 29 (1) (b) must be a mistake by the court, in pronouncing its intended judgment or order. This was clarified by DUBE J (as she then was) in *Hopcik Investments (Pvt) Ltd* v *Minister of Environment, Water and Climate and City of Harare* HH 336/16 at pp 4 to 5 of the judgment as follows:
>
> "Coming to the nature of the error made, Herbstein and Van Winstein in *The Civil Practice of the High Courts of South Africa*, 5th edition at page 934, describe a 'patent error or omission' as:
> 'An error or omission as a result of which the judgment or order granted does not reflect the intention of the judicial officer pronouncing it.
> The authors state that the patent error or omission must be attributable to the court itself and that relief will only be accorded where the terms of the judgment or order do not reflect the true intention of the presiding judge. In the *Firestone* case, Trollip J held at p 304 DH, that in a case involving correction of an order in terms of r 42 of the Uniform Court Rules of South Africa which is identical to our own r 449, that the court has the power to clarify its own judgments or orders so as to give effect to their true meaning and true intention of the court for as long as it

> does not alter the 'sense and substance' of the judgment or order. Further that the court's intention is to be ascertained primarily from the language or order as construed according to the usual rules. The same reasoning was followed in *Faheem Investments Pty Ltd* v *The Attorney General & Ors* 2010 1 BLR 675 HC. A patent error in the context of r 444 is apparent or clear from either the judgment or order. A court may only correct its judgment or order *moru motu* where it has made a patent error or omission as envisaged in terms of r 449. It is permissible for a judge who has made a patent error or omission in a judgment or order to clarify his order or judgment, of his own free will or motion by correcting it so that it reflects the true intention of the court in circumstances where the error is evident from the face of the judgment or order. The court should endeavour to do so without altering the 'sense or substance' of the judgment or order and must ensure that it does not admit a different interpretation to the judgment or order. Consequently, this exception is limited only to the correction of the order. The r 449 (1) (b) (2) caters for mistakes attributable to the court. The correctness of the order or judgment originally issued is not an issue but rather whether the court made a patent error or omission and in addition whether the order granted reflects the true intention of the court. The court may not substitute its judgment or order for another one completely different. The rule is meant merely to facilitate clarification of orders or judgments.'" (*my emphasis*)

The court order granted before ZHOU J on 27 March 2024 under HCH 2484/23 undoubtedly contained a patent error. It was not in dispute that the party cited as the respondent therein, Homelux Property Investments, was never a party before the court in those proceedings. When the proceedings commenced, the respondent was cited as Homelux Property Development. It is clear from the pleadings, in particular para 2 of the respondent's opposing affidavit, that the respondent sought to correct the name of the respondent. It did not raise a preliminary point that the applicant had sued a non-existent legal entity to render the proceedings thereof a nullity. Rather, it stated as follows:

> "… Respondent's correct citation should reflect Homelux Land Developers (Pvt) Ltd instead of Homelux Property Development as it is the owner of the land. Its address of service is care of its undersigned legal practitioners …"

The respondent clearly corrected the citation of the respondent. The argument now submitted by the respondent and taken by Mr *Mapuranga* that the respondent and Homelux Property Development were separate entities was simply an afterthought. The respondent, in para 2, never pleaded that. A party cannot take two inconsistent positions in proceedings. It is trite that one cannot approbate and reprobate. See *S* v *Marutsi* 1990 (2) ZLR 370 at p 374B, it was held that:

> "It is trite that a litigant cannot be allowed to approbate and reprobate a step taken in the proceedings. He can only do one or the other, not both."

Once it has decided to simply correct the name of the respondent and not object to the proceedings thereof, or that it was a different party altogether, the respondent cannot seek to argue that there are two distinct legal entities. It should be bound to the position it had adopted in those proceedings. In any event, nothing was produced before me as evidence to establish that positive assertion. It is trite that a party that makes a positive assertion, whether it is the applicant or respondent, bears the *onus* of proving it. He who alleges must prove. This position was enunciated in *Mobil Oil Southern Africa (Pty) Ltd* v *Mechin* 1965 (2) SA 706 (AD) at 711E-G where POTGIETER AJA (as he then was) said:

> "The general principle governing the determination of the incidence of the *onus* is the one stated in the *Corpus Iuris semper necessitas probandi incumbit illi qui agit* (D 22.3.21). In other words, he who seeks a remedy must prove the grounds therefore. There is, however, also another rule, namely, *ei incumbit probatio qui dicit non qui negat* (D 22.3.2.) That is to say the party who alleges or, as it is sometimes stated, the party who makes the positive allegation, must prove (cf *Kriegler* v *Minitzer and Anor* 1949 (4) SA 821 (AD) at 828). Together with these two rules must be read the following principle, namely: *agere etiam is videtur, qui exceptione utitur nam reus in exceptione actor est* (D 44.1.1.)". (*my emphasis*)

The same legal position was restated in *January v Maferefu* SC14/20, where UCHENA JA held that:

> "The appellant failed to prove her defence of lawful occupation of the respondent's property and the alleged fraudulent purchase of the property from her late father. As was held in *Nyahondo v Hokonya & Ors* 1997 (2) ZLR (S) 457 at 459, it is trite that he who makes an affirmative assertion, whether plaintiff or respondent, bears the *onus* of proving the facts so asserted. In view of the appellant's failure to prove any defence to the respondent's claim, she and all those claiming occupation of the property through her should be evicted from the respondent's property." (*my emphasis*)

The respondent, which was now alleging that Homelux Property Development and Homelux Land Developers (Pvt) Ltd were separate entities, completely failed to establish that fact. Bald and unsubstantiated allegations do not establish a party's announced or purported position: *Dube* v *Murehwa & Anor* SC 68/21. Accordingly, there was nothing upon which this court would consider that the respondent was a different entity from that which had initially been cited as the respondent. In any case, the respondent itself had corrected the name of the respondent to be Homelux Land Developers (Pvt) Ltd. As alluded to above, it cannot now turn and allege something else completely different from what it had stated before the court.

It was not in dispute that the applicant sought an amendment to properly cite the respondent by its correct name through a notice of amendment filed in Case No. HCH 2482/23. The law permits the correction of a party before the court or where there is a misdescription. See *Chiunga* v *AFC Commercial Bank Ltd* SC 02/26 at p 12, where MUSAKWA JA said:

> "It is trite that an application for correction or amendment may be allowed in circumstances where a party is misdescribed, provided that such correction is not prejudicial to the other party. In *Mapondera & Ors* v *Freda Rebecca Gold Mine Holdings (Private) Limited* SC 81/22 at p 11, the Supreme Court held as follows.
>
> "I could go on and on but the principle of law established by case law is clear. Where an existing entity is inadvertently misdescribed in judicial proceedings it is permissible to apply for correction of the anomaly in good faith provided that there is no irreparable prejudice to the other party."

There was no dispute that the applicant went on to plead for the correction of that error in the answering affidavit. She had then filed a notice of amendment. There was no objection filed against that amendment. The belated argument that the amendment was improper is nether here nor there. Once the amendment was sought, the court ought to have considered it either way. In this case, when the matter was finally determined by the judge, the amendment sought was already before the court.

There is no dispute that there was no oral hearing held; otherwise, the court would have been alerted to this amendment to correct the name of the respondent. The court committed an error when it granted the order without incorporating the correct name of the respondent. It even went on to issue an order against a party which was never part of the proceedings. In all these circumstances, I am satisfied that the order contains a patent error and that the error was attributable to the court itself. The order must be corrected to ensure that it can also be enforceable against the respondent, the party to the proceedings and the alleged owner of the property against whom a spoliation order is intended to be sought in the class action. The respondent was already before the court, and it was also given the opportunity to state its position in the matter. The alternative order ought to be granted as the composite application is merited.

As regards the costs, there is no reason to depart from the general rule that costs should follow the cause.

It is accordingly ordered as follows:

1. The application to amend the citation by substituting Homelux Land Developers (Private) Limited for the Respondent in Case No. HCH 2484/23 be and is hereby granted.
2. Subsequently, the court order in Case No. HCH 2484/23 is hereby amended by substitution of "Homelux Land Developers (Private) Limited" for "Homelux Property Investments".
3. The respondent shall pay the costs of suit.

Alternatively

1. The application for condonation for the late filing of an application for correction or variation of a court order be and is hereby granted.
2. The application for variation or correction of the court order in Case No. HCH 2484/23 be and is hereby granted.
3. The court order granted in Case No. HCH 2484/23 is hereby corrected by the deletion of "Homelux Property Investments" and substitution thereof with "Homelux Land Developers (Private) Limited.
4. The respondent shall pay the costs of suit.

DEMBURE J: ……..

Antonio & Dzvetero, applicant's legal practitioners
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